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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on : 17.09.2026

Pronounced on : 30.09.2026

CORAM

THE HONOURABLE MR.JUSTICE RAJNISH PATHIYIL

WP(MD) NO. 18247 of 2023
{CNR: HCMD010829992023}
Case QR

WP(MD) No. 12506 of 2022,WP(MD) No. 12505 of 2022,WP(MD) No. 16024 of 2021,WP(MD) No. 16023 of 2021,WP(MD) No. 16019 of 2021,WP(MD) No. 12504 of 2022,WP(MD) No. 12503 of 2022,WP(MD) NO. 12502 of 2022,WP(MD) No. 11844 of 2022,WMP(MD) No. 15215 of 2023,WP(MD) No. 16015 of 2021,WP(MD) No. 16018 of 2021,WP(MD) No. 16017 OF 2021,WP(MD) No. 16016 of 2021,WP(MD) No. 16022 of 2021,WP(MD) No. 16021 of 2021,WP(MD) No. 16020 of 2021

WP(MD).No.18247 of 2026

Parvathi ...Petitioner

Vs.

1. The Director General of Police,
   Dr.Radhakrishnan Salai,
   Chennai.

2. The Deputy Inspector General of Police,
   Madurai Range,
   Madurai.

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3. The Superintendent of Police,
Madurai District,
Madurai ... Respondents

PRAYER: Writ Petition filed under Article 226 of the Constitution of India for issuance of Writ of Certiorarified Mandamus, calling for the records relating to the impugned orders passed by the 3rd respondent in C.No.A1/E-1558210/629/2021 dated 01.04.2022 and quash the same as illegal and consequently direct the respondents to promote the petitioner as Inspector of Police with effect from the date on which the petitioner's juniors were promoted .

For Petitioner : Mr.S.Chella Pandian

For Respondents : Mr.T.Cibi Chakraborthy
Additional Government Pleader

COMMON O R D E R

All the petitioners are similarly placed and are all claiming the very same relief of issuance of a mandamus, directing the respondents to promote them as Inspectors of Police from the date on which their juniors were promoted. The factual narrative and all the affidavits are common, and hence, this order is passed as a common order.

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2. It is the case of the petitioners that they were recruited as Women Police Constables Grade-II on 21.04.1981 and were sent for training in three batches on three different dates, and the seniority amongst them was fixed on the basis of the marks that they obtained in the examinations conducted for the said purpose. The seniority vis-à-vis the candidates who were sent for training in the first batch was determined on the basis of the said marks amongst the candidates in the said batch. Likewise, in the other two batches, the inter se seniority was determined on the basis of marks that were obtained by them in the qualifying examination.

3. It is the petitioners' case that the seniority in respect of the three batches was maintained separately, and the candidates who were sent up for training in the first batch were placed above the candidates in the second and the third batches. In 1996, they were promoted as Women Head Constables, and thereafter, they were promoted as Sub-Inspectors of Police on or around 25.10.2004. At that point in time a “C-List” was in vogue, and in the said list, the names of the petitioners were listed and maintained based on the initial rank that was assigned to them at the time of their enlistment as Grade I/Grade-II police constables. The seniority list which was set out in the “C-

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List" was maintained and considered for the promotion to the post of women Sub Inspector of police.

4. It is the case of the petitioners that one Yashothai, who was similarly placed to the petitioners, approached this court by filing a Writ Petition in W.P.No. 451 of 2008 seeking for issuance of a Writ of Mandamus directing the respondents to pass orders on her representation dated 03.12.2007 for revision of her seniority. This court, vide an order dated 07.01.2008, had directed as follows

> *"In view of the said submissions, without expressing anything on merits, the respondent is directed to consider the representation of the petitioner dated 03.12.2007 seeking revision of seniority and pass orders thereon on merits and in accordance with law, with a period of eight weeks from the date of receipt of copy of this order"*

5. In the interregnum, when the matter stood thus, the first respondent, vide memo dated 07.08.1996 had directed that the seniority of Women Police Constables recruited in the year 1981 (in the three batches) shall be combined and fixed based on the marks obtained by them in the final examination in the Police Recruit School (hereinafter referred to as PRS), irrespective of the date of their batch of training. Based on the said memo dated 07.08.1996 and in pursuance of the orders passed by this court dated 07.01.2008, the Deputy

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Inspector General of Police, Ramnad Range, had revised the seniority of Women Head Constables vide his proceedings dated 12.06.2009. It is averred by the petitioner that due to the said exercise, the candidates who were junior to the petitioners have moved up in the seniority list and were placed as seniors to the petitioners. As narrated above, the seniority was revisited by taking into account the final rank that was obtained by the police recruits in the PRS and not on the basis of their initial rank in the qualifying exam at the time of appointment.

6. It is therefore the case of the petitioners that their right to be considered for promotion was deprived, and ultimately the petitioners retired in the following years:

Sl. No.	WP(MD). No.	Name	DOE as Gr.II PCV	WSI Date of "B" List	Declare Range	Date of Retirement
1.	16015/2021	R.Chandra	All are appointed in the year 1981	22.05.2006	Dindigul Range	31.05.2016
2.	16016/2021	M.Farish Begum	"	25.05.2003	Dindigul Range	31.05.2014
3.	16017/2021	S.Thenmozhi	"	25.05.2003	Madurai Range	31.08.2022

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4.	16018/2021	V.Nirmala Devi	"	25.05.2003	Dindigul Range	31.05.2019
5.	16019/2021	R.Senthamarai	"	23.05.2007	Dindigul Range	30.06.2022
6.	16020/2021	C.Santhalakshmi	"	25.05.2003	Dindigul Range	31.05.2017
7.	16021/2021	G.Jothi	"	25.05.2003	Dindigul Range	31.12.2013
8.	16022/2021	K.Subbuthai	"	18.07.2005	Dindigul Range	31.03.2018
9.	16023/2021	Maheswari	"	25.03.2003	Madurai Range	30.06.2022
10.	16024/2021	R.Susila	"	25.05.2003	Dindigul Range	31.07.2016 VRS
11.	11844/2022	R.S.Seethammal	"	18.07.2005	Madurai City	31.10.2011
12.	12502/2022	S.R.Brindha	"	18.07.2005	Madurai City	31.07.2006 VRS
13.	12503/2022	R.Packiathai	"	18.07.2005	Madurai City	30.06.2017
14.	12504/2022	A.K.Chandra	"	18.07.2005	Madurai City	31.12.2014
15.	12505/2022	D.Kalamani	"	18.07.2005	Madurai City	31.03.2017
16.	12506/2022	G.Vijayalakshmi	"	18.07.2005	Madurai City	30.09.2015
18.	18247/2023	Parvathi	"	01.06.2004	Dindigul Range	31.03.2017 VRS

*To be noted all of them were appointed as GR-I WPC on 21.04.1981

7. It is the case of the petitioners that they sent separate representations to the Director-General of Police and to the first respondent, for the

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restoration of seniority. It is further averred in the affidavit filed by the petitioners that one Muthulakshmi and other similarly placed persons filed writ petitions before this court in W.P. Nos. 7122 of 2009 and 7332 of 2009 seeking a Writ of mandamus to dispose of their representations seeking restoration of seniority. By an order dated 03.08.2009, this court was pleased to direct the respondents to consider their representations and pass orders. Thereafter, the first respondent had, vide proceedings dated 29.10.2009, rejected the said request. In the rejection order, the respondents contended that the seniority, insofar as Yashothai is concerned, was based on the order of this court passed in W.P. No. 451 of 2008 dated 07.01.2008. However, it is to be noted that this court had merely directed the disposal of the representation dated 03.12.2017**,** and no directions were issued by this court to assign any seniority to said Yashothai over and above the others in the order passed in W.P. No. 451 of 2008. Therefore, it is contended by the petitioners that the reasons recorded in the order dated 29.10.2009 are erroneous.

8. It is the case of the petitioners that seniority was maintained all along over the period of the last three decades on the basis of the rank

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obtained in the qualifying examination, and such seniority cannot be altered without affording an opportunity to the petitioners. The petitioners have further contended that Rule 35A of the Tamil Nadu Police Subordinate Service Rules, contemplates that seniority cannot be revisited or revised except when the candidate is demoted to a lower post. It is further averred that Yashothai, whose case was directed to be considered on the basis of her representation, had also acquiesced to the fact that she had never challenged the seniority for almost two decades and therefore she was estopped from agitating the same. Thus, they submitted that the order passed in favour of Yashothai vide memo dated 07.08.1996 and the consequent order dated 12.06.2009 were incorrect, and similar persons are being assigned ranks in the seniority batch by clubbing the three batches and granting seniority on the basis of the marks that they obtained in the PRS. It is further contended by the petitioner that similarly placed persons like the petitioners approached this court in A.Muniyammal and Others v. Inspector General of Police and Others, W.P. No. 10989 of 2010 challenging the revision of seniority and seeking consequential directions to promote them to the post of Inspector of Police on par with the juniors who were recruited as constables in the year 1981. This court allowed the aforesaid writ petition by Order dated

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11.11.2014 directing as follows:

> "*5. This issue relating to re-fixation of the seniority of the respondents 4 to 12 and 15 is already dealt with by this Court in W.P. (MD) No. 1542 of 2010. which is filed by similarly placed Women Sub Inspectors of Police one Bharathamatha and three others and decided by myself atter a detailed discussion, I set aside the impugned order of the third respondeat in Proceedings C.No.A.2/11308/2008/R.O.No. 139/2009,dated 12.06.2009 and the consequential memorandum of the respondents 1 and 2 mainly on the dated 12.06.2009 and the ground of delay and laches and negligence on the part of the individual respondents therein to raise the objections regarding fixation of seniority by holding that the fixation of seniority and the revision of seniority is without jurisdiction and directed to restore the original seniority and while doing so, this Court held that the petitioner therein, who are also similarly placed Sub-Inspectors of Police are entitled to be promoted to the next promotional post of Inspector of Police with effect from the date on which their juniors are given promotion with all service and monetary benefits.*
>
> *6 As the present writ petition is filed challenging the very Same proceedings regarding the refixation of seniority and the same memorandum of communication issued by the respondents 1 and 2, the present writ petition shall also be allowed applying the decision in the earlier proceeding and the impugned order stands quashed with appropriate direction to the respondents to give promotion to the petitioner with retrospective effect.*
>
> *7. In the result, the impugned order stands quashed with a direction to the respondents 1 to 3 to give promotion to the petitioners with consequential service and monetary benefits with effect from the date on which their juniors are promoted.*
>
> *In the result, the writ petition is allowed. No costs. Consequently, the connected miscellaneous petition is closed."*

Against the same, the respondents preferred an appeal in W.A. No. 172 of 2018 *Yasothai v. G. Bharathamatha* and others batch, which was also dismissed by this court on 17.09.2018. The respondents have thereafter partly

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revised the seniority of Muthulakshmi and others and promoted them as Inspectors of Police from the date on which their juniors were recruited as police constables in the year 1981. The petitioners were also in the fond hope that the benefit which had been extended to Muthulakshmi and others would also ensure to them, and hence they made a representation on 11.08.2021 requesting promotion to the post of Inspector of Police on par with their juniors.

9. It is contended by the petitioners that the order dated 17.09.2018 passed in W.A. No. 172 of 2018 has become final and is therefore a judgment in Rem. Consequently, vide proceedings dated 25.02.2021, the Deputy Inspector General of Police, Madurai Range, as well as the Deputy Inspector General of Police, Ramanathapuram Range, accorded deemed promotion to the petitioners covered in *A.Muniyammal (supra)* W.P. No. 10989 of 2010, seeking parity, the petitioners have filed the present mandamus. They also rely upon a judgment of the Honourable Supreme Court in ***State of Karnataka and Others v. N. Parameshwarappa and Others*** reported in **(2003) 12 SCC 192** and contend that in decisions of courts in matters of common interest, the same has to be applied equally among the persons who

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approached the court as well as those who have not initiated litigation, and thus they seek for issuance of a mandamus.

10. The learned Additional Government Pleader began his submissions by firstly adverting to the counter filed by the third respondent submitted that the petitioners were enlisted as women Grade-I police constables on 21.04.1981, that they had been sent up for training in three different batches in the PRS, Vellore, and that the petitioners were upgraded as women head constables with effect from 14.11.1996 as per G.O.Ms. No. 1476, Home (Police V) Department, dated 03.10.1996. Later, vide Chief Office Memorandum in Rc.No.178383/NGB.VII(1)/04 dated 29.09.2004, the petitioners were also promoted as Women Sub-Inspectors after undergoing screening, with effect from 01.12.2004. It is also the case of the respondents that all the petitioners have since retired on various dates, and the dates of retirement tabulated above is also not disputed by the respondents.

11. The learned Additional Government Pleader referred to Rule 35(f) of the General Rules of the Tamil Nadu State and Subordinate Service Rules,

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which corresponds to Section 40(6) of the present Tamil Nadu Government Servants (Conditions of Service) Act, 2016, and submitted that an application for revision of seniority of a person in service shall be submitted to the appointing authority within a period of three years from the date of appointment, and any application received after the said period of three years has to be summarily rejected. It is contended by the respondents that the petitioners have approached this court by filing a writ petition almost five to seven years after their respective superannuation, and hence the writ petition is liable to be dismissed on the grounds of delay as well as laches.

12. He would rely on the judgment of the Hon'ble Supreme Court in ***State of Uttar Pradesh and Others v. Arvind Kumar Srivastava and Others***, reported **in (2015) 1 SCC 347**, wherein it was held that persons who did not challenge the wrongful action within a reasonable time and acquiesced in the same cannot subsequently seek the benefit of a judgment rendered in favour of similarly situated persons who had approached the Court earlier, and such persons would be treated as fence-sitters. He would also rely on the judgment of the Hon'ble Supreme Court in ***C. Jacob v. Director of Geology and Mining*****,** reported in **(2008) 10 SCC 115**, to contend that a stale or dead claim

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cannot be revived by making a belated representation and that the consideration and rejection of such a representation would not furnish a fresh cause of action. It is therefore contended that the petitioners, having failed to challenge the alleged grievance within the prescribed period and having approached this Court only after several years of their respective superannuation, cannot seek to revive a stale claim by relying upon their subsequent representations.

13. The respondents further contend in the counter that vide G.O.Ms. No. 2655, Home Department, dated 01.11.1974, the seniority of Women Police Constables was fixed with reference to the marks obtained by them in the final examinations in the training institution. Among the police constables who secured the same marks at the final examination, the senior in age was placed above the junior in age. Vide G.O.Ms. No. 1706 dated 03.07.1986, the seniority of women police constables upto the rank of Sub-Inspectors of Police was maintained at the respective range levels. Thereafter, vide proceedings of the first respondent dated 07.08.1996, addressed to the Commissioner of Police, Madurai City, the seniority of women constables recruited in the year 1981 who underwent training in three different batches

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was fixed on the basis of marks obtained by them in the final examination in the PRS, combining all three batches into one, irrespective of their date of training.

14. Accordingly, following the aforesaid instructions, the seniority of the 1981 batch women police constables was maintained in all the zones/ranges of Tamil Nadu. However, the same had not been followed in the Ramanathapuram range; instead, seniority was maintained based on the date of enlistment, total marks obtained in the PRS, and the date of passing out from the PRS. It is in the above factual background that Tmt. Yashothai, a head constable working in Virudhunagar district who belonged to the 1981 batch and was serving in the Ramanathapuram range, filed a Writ Petition in W.P. No. 451 of 2008 seeking for a mandamus to direct the respondents to consider and pass orders on her representation dated 03.12.2007 for the revision of her seniority. This court, by order dated 07.01.2008, directed consideration of her representation. Thereafter, the Deputy Inspector General of Police, Ramanathapuram Range, sent a letter to the first respondent seeking clarification for revision, and the first respondent, in his

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memorandum dated 11.05.2009, directed that the seniorities of women police constables have to be fixed based on the marks obtained by them in the police recruitment school, following G.O.Ms. No. 1706, Home dated 03.07.1986. In pursuance of the aforesaid clarifications issued by the first respondent, the representation of Yashothai dated 03.12.2007 was considered, and the seniority of 24 women Grade-I constables of the Ramanathapuram range was revised by the Deputy Inspector General of Police, Ramanathapuram Range, based on the marks obtained by them in the PRS. Accordingly, because Yashothai obtained 324 marks in the PRS, she secured the first place in the seniority list in the Ramanathapuram range. Consequent to the revision of seniority, the dates of promotion of the said 24 women police personnel as head constables were revised on par with their juniors, and thereafter their dates of promotion as Sub-Inspectors of Police were fixed as 21.02.1999.

15. It is contended in the counter that the revision of seniority was done only in the Ramanathapuram range because seniority had not been maintained as per G.O.Ms. No. 2655 dated 01.11.1974, prompting the first respondent to direct the Deputy Inspector General, Ramanathapuram Range, to follow the said G.O.Ms. No. 2655 dated 01.11.1974 and the subsequent

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G.O.Ms. No. 1706 dated 03.07.1986. He further contended, by referring to paragraph 9 of the counter, that insofar as the petitioners are concerned, they were all serving in Madurai city, Madurai Range and Dindigul Range and their seniority was all through maintained as per G.O.Ms. No. 2655 dated 01.11.1974 and based on the marks obtained in the PRS. Hence, the question of refixing or revisiting their seniority on par with their junior, namely Yashothai, does not arise at all.

16. It is further contended that challenging the revision of seniority of Tmt. Yashothai and 11 others who were promoted with effect from 21.02.1999, the other aggrieved women officers who, due to the revision, came to the bottom of the seniority list and hence filed writ petitions before this court seeking to set aside the revision of seniority as directed by the Deputy Inspector General, Ramanathapuram Range, on 12.06.2009.

S.No.	Name	W.P.No	Marks obtained in PRS Vellore
1.	Tmt.K.Muthulakshmi	7122/2009	261 ¼
2.	Tmt.V.Nagarathinam	7123/2009	258 ½
3.	Tmt.R.Vasantharani	7124/2009	255
4.	Tmt.G.Gnanasoundari	7125/2009	254 ½
5.	Tmt.G.Bharathamatha	7332/2009	258 ½

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17. The writ petitioners therein had obtained lower marks when compared to Yashothai and others, and therefore their representations had been rejected.

18. Aggrieved by the rejection of representations dated 29.10.2009, Tmt. G.Bharathamatha and three others filed W.P. No. 1542 of 2010 seeking for issuance of writ of Certiorari and Mandamus to quash the order dated 12.06.2009 and the consequential memorandum dated 29.10.2009, and to direct the respondents therein to promote the petitioners as Inspectors of Police. It is submitted that the revision of seniority was done only in the Ramanathapuram range where it was not maintained as per the earlier government orders for the 1981 batch police constables.

19. It is further averred in paragraph 13 of the counter that thereafter Yashothai, whose seniority was revised, was promoted as a Woman Inspector of Police with effect from 01.10.2004 in Virudhunagar district, which comes under the Madurai range. Thereafter, Muniyammal and 20 other women sub-inspectors filed in *A.Muniyammal,* W.P. No. 10989 of 2010. The relevant

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paragraph is extracted hereunder:

> " 14. *It is respectfully submitted that the Hon'ble Madurai Bench of Mandras High Court in its order in WP(MD).No.1542 of 2010 dated 25.02.2014 has made the following findings the revision of the seniority has been done only in accordance with the direction of the Director General of Police on the strength of G.O.Ms.No. 1706 dated 03.07.2006. As rightly pointed out by the learned counsel for the petitioners, G.O.Ms.No.1706 cannot be given effect to retrospectively for the seniority fixed during 1981 and the same shall be applied prospectively for future course of seniority and the revision of seniority on the basis of the G.O. and on the basis of the instructions issued by DGP as per G.O. is arbitrary, without jurisdiction and legally unsustainable.*
>
> *Viewing from any angle, the impugned order passed in 2009 thereby revising seniority fixed in 1981 is contrary to law and in contravention of the legal principles and in violation of the principles of natural justice and suffers on account of delay and laches and negligence on the part of the respondents to raise the objections regarding the fixation of seniority and the revision of seniority is without jurisdiction and liable to be quashed and stands quashed.*
>
> *At this juncture, the learned counsel for the petitioners would bring it to the notice of this Court that out four petitioners, petitioners 1 & 2 are in service and the petitioners 3 & 4 retired on attaining the age of superannuation. In view of that the petitioners 1 & 2 are entitled to be promoted and the petitioners 3 & 4 are entitled to get notional promotion in the manner are indicated above.*
>
> *In the result, the impugned orders stand quashed with direction issued to the respondents 1 to 3 to give promotion to the petitioners 1 & 2 and give notional promotion to the petitioners 3 & 4 with all monetary and service benefits with effect from the date on which their juniors are promoted."*

20. This court, vide order dated 11.11.2014, by quoting the earlier orders passed in W.P. No. 1542 of 2010 **(G.Bharathamatha and 3 others),** allowed the prayer of the writ petitioners, quashed the impugned Order and issued directions to the respondents to promote the petitioners with consequential

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service and monetary benefits. It is further averred that writ appeals were preferred in W.A. No. 172 of 2018 by Yashothai and W.A. No. 640 of 2015 by the respondent department against the order dated 25.02.2014 in W.P. No. 1542 of 2010. Ultimately, this court, vide order dated 17.09.2018 in W.A. No. 172 of 2018 (and connected matters), dismissed the writ appeals following the earlier orders. The operative part of the order is extracted for ease of reference as follows:

> *"It is respectfully submitted that in the above said 03 Writ Appeals, the Hon'ble Madurai Bench of Madras High Court, Madurai has issued a common order dated 17.09.2018 and the same is as follows:-*
>
> 5. *The learned Counsel appearing for the appellants would submit that the seniority list was drawn wrongly both on fact and on law. Notwithstanding the marks it was drawn, this Court is unable to accept the said contention. In service prudence, the issue qua delay and latches will have to be viewed more seriously. The first seniority list was drawn way back in the year 1981. A representation was made in the year 2009. A mere representation made, notwithstanding the numerous promotions made in the interregnum, cannot and shall not be allowed to circumvent delay and latches. It appears that the representations itself has been given after 10 years. There was no challenge to the subsequent promotion as Grade 1, Head Constable, Sub-Inspector of Police and Inspector of Police. The impugned order was also passed without hearing the writ petitioners, whe acquired vested rights. Even otherwise promotions made subsequently are not challenged and thus cannot be set aside. Therefore, viewing from any perspective, this court does not find any merit in the writ appeals.*
>
> 6. *In the result, the writ appeals in WA(MD).No.650 of 2015 and 127 of 2017 are dismissed . In view of the order passed in these writ appeals, W.A.(MD).No. 172 of 2018 is disposed of . No costs. Consequently, connected miscellaneous petitions are closed."*

21. It is in light of the above fact and to give effect to the order passed

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in W.P. No. 1542 of 2010 dated 25.02.2014 and the order passed in the writ appeal, the promotions of G.Bharathamatha and 3 others were accorded. It is also averred in the counter that as against the order dated 17.09.2018, in W.A. No.172 of 2018 review applications along with condonation of delay petitions (C.M.P. No. 2970 of 2020 in Review Application SR No. 16601 of 2020) were filed, but the C.M.P.s seeking condonation of delay were dismissed by this court. Thus, the orders passed in the writ appeals became final, and accordingly, the petitioners therein, namely G. Bharathamatha and 3 others, and Muniyammal and 20 others were granted deemed promotion as temporary inspectors of police with effect from 01.10.2004.

22. It is therefore contended that the petitioners cannot seek parity in respect of the orders obtained by G. Bharathamatha and 3 others and Muniyammal and 20 others, which arose from writ petitions filed by them way back in the year 2010. The petitioners have been fence-sitters and did not initiate any action for the last 12 years, and have filed the present writ petition only after their respective retirements. The seniority position which has been settled cannot be unsettled at this point in time. Moreover, the seniority pertains to the recruitment of women constables in the year 1981, and 45 long

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years have now passed; to unsettle the position of seniority would be incorrect and contrary to the law laid down by the Supreme Court.

23. The learned Additional Government Pleader also referred to a common order of the Hon'ble Division Bench of this Court in ***Yasothai v. G.Bharathamatha and 15 Others, W.A.(MD) No.172 of 2018, W.A. (MD) No. 127 of 2017 and, W.A. (MD) No. 650 of 2015*** dated **17.09.2018** to contend that unless petitioners approach the authorities within a reasonable time or as stipulated in the statute (in this case, after the coming into force of the Tamil Nadu Government Servants (Conditions of Service) Act, 2016, requiring applications for revision of seniority to be made within three years of the date of appointment), such claims cannot be entertained. The relevant portions of the judgment are extracted as follows:

> "*5. The learned Counsel appearing for the appellants would submit that seniority list was drawn wrongly both on fact and on law. Notwithstanding the marks it was drawn, this court is unable to accept the said contention. In service prudence, the issue qua delay and latches will have to be viewed more seriously. The first seniority list was drawn way back in the year 1981. A representation was made in the year 2009. A mere representation made notwithstanding the numerous promotions made in the interregnum cannot and shall not be allowed to circumvent delay and latches. It appears that the representations itself has been given after 10 years. There was no challenge to the subsequent promotion as Grade 1, Head Constable, Sub-Inspector of Police and Inspector of Police. The impugned order was also passed without hearing the writ petitioners, who acquired vested rights. Even otherwise promotions made subsequently are not challenged and thus cannot be set aside. Therefore, viewing from any*

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perspective, this court does not find any merit in the writ appeals.

6. In the result, the writ appeals in W.A. (MD). No.650 of 2015 and 127 of 217 are dismissed. In view of the order passed in these writ appeals, W.A. (MD). No. 172 of 2018 is disposed of. No costs. Consequently, connected miscellaneous petitions are closed."

24. The revision of seniority of Yashothai was because of the mistake that was being carried forward in the Ramanathapuram range, while in other ranges, including Madurai City, seniority was always maintained as per the rank obtained by candidates in the final examination at the PRS. Thus, he would contend that the writ petitions filed at this distant point in time cannot be sustained and seek dismissal of the writ petitions.

25.Upon hearing counsels on either side and having perused all the records, including the judgements that have been cited by the counsels, the following facts emerge.

26. The petitioners before this court are all mostly from the Dindigul / Madurai range, and some of them are also from the Madurai City Police. They all seek parity in respect of the promotion granted to one Yashothai, who was in the Ramanathapuram range. It is the admitted case of both sides that the seniority in respect of Grade-I / Grade-II constables up to the rank of sub-

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inspectors was maintained range-wise.

27. In the present case, Yashothai complained that her seniority had been overlooked, as she claimed that she had obtained 324 marks in the PRS and therefore ought to have been placed on top, whereas the seniority list drawn vide order dated 03.12.1996 by the Ramanathapuram range had put her at the 16th position even though she stood first in merit compared to others after undergoing training at the PRS. She preferred a representation and thereafter approached this court, and this court disposed of her writ petition in W.P. No. 451 of 2008 vide order dated 07.01.2008, to dispose of her representation. Her representation pointed out that in all ranges across the State of Tamil Nadu, seniority was being maintained on the basis of marks obtained in the PRS as covered by government orders and office orders of the DGP. However, insofar as Ramanathapuram was concerned it was an exception and seniority was not fixed on the said basis.

28. This court vide the order dated 07.01.2008 directed that Yashothai's representation be disposed of, and thereafter the Director-General of Police (the first respondent herein) passed an order dated 11.05.2009

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revising the seniority of Yashothai and consequently all others in the Ramanathapuram range on the basis of total marks obtained in the PRS. Accordingly, Yashothai was notionally promoted as a Grade-II police constable and thereafter as a woman sub-inspector with effect from 21.02.1999.

29. The order dated 07.01.2008 passed in W.P.(MD) No. 10989 of 2010 filed by A.Muniyammal. In the said writ petition, Yashothai was not made a party. Therefore, Yashothai alleging that the Order was passed behind her back filed W.A. (MD). No. 172 of 2018, which ultimately came to be dismissed vide the Order of the Hon'ble Division Bench dated 17.09.2018. The basis of the judgment in W.A.(MD) No. 172 of 2018 and related cases was that the persons whose seniority was affected were neither heard nor made parties to the writ petition. The court observed that Yashothai was guilty of laches, and in matters of seniority, laches must be viewed seriously as orders of such nature unsettle settled issues. It was observed that the the promotion made subsequently are not challenged and thus cannot be set aside. Therefore, viewing from any perspective, the court did not find any merit

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with the writ appeals. Therefore the writ petition was disposed of in view of orders passed in W.A.(MD). No. 650 of 2015 and 127 of 2017.

30. The relief granted to G.Bharathamatha and others was implemented vide order of the first respondent dated 25.02.2021 by citing the Order passed in W.A. No. 172 of 2018. A batch of writ petitions was also filed by me A. Muniyammal and 20 others in W.P. No. 10989 of 2010, and by order dated 11.11.2014, a single judge of this court allowed the writ petition based on the earlier order passed in favour of G.Bharathamatha and others in W.P. No. 1542 of 2010, which was confirmed in W.A. No. 172 of 2018.

31. Since the orders passed in favour of G.Bharathamatha and Muniyammal were implemented, the petitioners have now come forward claiming parity. However, it must be noted that the petitioners herein are either from the Dindigul range, Madurai range, or Madurai City Police, and in all these three ranges, seniority was always maintained on the basis of ranks obtained in the PRS. This was unlike Ramanathapuram Range, where seniority was based on the rank obtained in the selection list and the date of training (as the 1981 batch women constables were sent in three batches for

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training, and inter se seniority was based on selection rank). Only in Ramanathapuram was seniority maintained as per selection rank, whereas in all other ranges, seniority positions were maintained on the basis of marks obtained in the PRS.

32. The confusion arose because of the order passed by the first respondent in ROC No. 139 dated 12.06.2009, by virtue of which Yashothai was placed at serial number one while others above her were pushed down. Though passed pursuant to a direction to consider her representation, those affected by the order (G.Bharathamatha and 3 others) challenged the same, leading to the setting aside of the seniority list. By that time, Yashothai had already been promoted, and her promotion was not disturbed. The order in favour of G.Bharathamatha and 3 others was challenged by Yashothai and others in W.A. No. 172 of 2018, which was dismissed, concluding that Yashothai's alteration of seniority after 18 years though based on the training marks, was barred by laches and delay, and hence seniority was restored. Consequently, G.Bharathamatha and three others were promoted as Inspectors of Police on par with Yashothai.

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33. The petitioners now claim the seniority and promotion on par with G.Bharathamatha and Muniyammal. However, those cases arose because Yashothai (originally a junior) was promoted, and in order to compensate the seniors in her list, they were granted promotions. That cannot be the basis for seeking promotion in the present case, because in the petitioners' case, the seniority list was never disturbed and has all through been maintained on par as per their respective marks obtained in the PRS.

34. Furthermore, at this late stage after having retired from service, the petitioners have preferred the writ petition in the year 2021. Most of the petitioners retired between 2014 and 2019, barring a few who retired a little later. Thus, the petitioners are seeking to redraw seniority drawn as early as 1981 based solely on training marks. In this regard, the Hon'ble Supreme Court in ***State of Uttar Pradesh and Others v. Arvind Kumar Srivastava and Others (Supra)***, has held that delay, laches and acquiescence constitute well-recognised exceptions to the general principle of extending the benefit of a judgment to similarly situated persons. The relevant portion of the judgment is extracted herein:

> *"22.2. However, this principle is subject to well-recognised exceptions in the form of laches and delays as well as acquiescence. Those persons who did*

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not challenge the wrongful action in their cases and acquiesced into the same and woke up after long delay only because of the reason that their counterparts who had approached the court earlier in time succeeded in their efforts, then such employees cannot claim that the benefit of the judgment rendered in the case of similarly situated persons be extended to them. They would be treated as fence-sitters and laches and delays, and/or the acquiescence, would be a valid ground to dismiss their claim."

Further, in ***C. Jacob (Supra)***, the Hon'ble Supreme Court has held that a stale or dead claim cannot be revived by a subsequent representation or by an order passed thereon. The relevant portion of the judgment is extracted as follows:

"*10. Every representation to the government for relief, may not be replied on merits. Representations relating to matters which have become stale or barred by limitation, can be rejected on that ground alone, without examining the merits of the claim. In regard to representations unrelated to the department, the reply may be only to inform that the matter did not concern the department or to inform the appropriate department. Representations with incomplete particulars may be replied by seeking relevant particulars. The replies to such representations, cannot furnish a fresh cause of action or revive a stale or dead claim.*

11. When a direction is issued by a court/tribunal to consider or deal with the representation, usually the directee (person directed) examines the matter on merits, being under the impression that failure to do may amount to disobedience. When an order is passed considering and rejecting the claim or representation, in compliance with direction of the court or tribunal, such an order does not revive the stale claim, nor amount to some kind of `acknowledgment of a jural relationship' to give rise to a fresh cause of action.

..14. We are constrained to refer to the several facets of the issue only to emphasize the need for circumspection and care in issuing directions for `consideration'. If the representation is on the face of it is stale, or does not contain particulars to show

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that it is regarding a live claim, courts should desist from directing `consideration' of such claims."

Respectfully following the aforesaid decisions on the proposition of delay and laches, this Court is of the view that the petitioners, having approached this Court after such a long lapse of time and, in all cases, after their retirement, cannot seek to reopen the seniority position which had remained settled from as early as 1981

35. I see no reason to set aside the seniority or direct the grant of notional or actual promotion to the petitioners, as they have been fence sitters and have not satisfactorily explained as to why they have approached this court after almost 45 long years since seniority was fixed originally in 1981 and thereafter when promotion was made to the grade of Women Police Constable, Grade I in 1996. Moreover, while seniority in the Ramanathapuram range was erroneously maintained, seniority in the Madurai, Dindigul, and Madurai City ranges was rightly drawn as per the applicable government orders namely G.O.Ms. No. 2655 dated 01.11.1974, G.O.Ms. No. 1706 dated 03.07.1986 and G.O.Ms. No. 1476 Home Police V Department, dated 03.10.1996.

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36. In fine, the writ petitions are dismissed both on the ground of laches as well as on the merits of the contention. No cost.

30.09.2026

NCC :yes/No
Index :yes/No
Internet:yes/No
msrm

Note: Registry is directed to type the full cause title while issuing the order copy.

To

1. The Director General of Police,
   Dr.Radhakrishnan Salai,
   Chennai.

2. The Deputy Inspector General of Police,
   Madurai Range,
   Madurai.

3. The Superintendent of Police,
   Madurai District,
   Madurai

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RAJNISH PATHIYIL, J.

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